

EFFECTIVE DATE OF THIS PARTICIPATION AGREEMENT ("PA"):
24th Nov 2017

This PA between IBM India Pvt Ltd ("Buyer") and GEORGE P JOHNSON EVENT MARKETING PRIVATE LTD ("Supplier") adopts and incorporates by reference all of the terms and conditions of the Base Agreement 4998CM0379 in effect as of the date hereof ("Base Agreement") This PA does not adopt and incorporate any amendments to the Base Agreement unless agreed to in writing by the parties to this PA.

However, any future amendments to the Base agreement referenced in this PA are automatically incorporated and made a part of this PA.

A Work Authorization ("WA") may be issued under this PA by either the Buyer or any Affiliate of the Buyer. The Buyer or Affiliate of Buyer that issues a WA against this PA is referred to herein as the "Buyer Entity". The Supplier or Affiliate of Supplier that accepts the WA from a Buyer Entity is referred to herein as the "Supplier Entity".

This PA and the Base Agreement establish the basis against which WAs may be issued by a Buyer Entity to a Supplier Entity. This PA does not obligate Buyer, Buyer Entities, Supplier or Supplier Entities (or any of their respective Affiliates) to purchase or sell Deliverables, Products or Services.

However, upon issuance of a WA against this PA by a Buyer Entity to a Supplier Entity, the Buyer Entity issuing the WA and the Supplier Entity in receipt thereof agree that purchases and sales of the Deliverables, Products or Services, as defined in the Base Agreement, will be conducted in accordance with, and be subject to, the terms and conditions of this PA, the Base Agreement and any applicable WA.

AMENDMENTS: The following terms and conditions amend provisions of the Base Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1.0 Prior Communications and Order of Precedence

In the event of any conflict between the terms of the Base Agreement and other documents, the order of precedence will be: (i) the quantity, payment and delivery terms of the relevant WA; (ii) the relevant SOW; (iii) this PA; (iv) the Base Agreement; and (v) the remaining terms of the relevant WA.

2.0 Choice of Forum

This PA will be governed by the laws of India. The parties agree to submit to the non-exclusive jurisdiction of the courts in the State of Delhi

3.0 Warranties

In addition to the representations and warranties in the Section titled "Ongoing Warranties" in the Base Agreement, Supplier represents and warrants:

1. it is familiar with all local laws and regulations pertaining to bribery, corruption and prohibited business practices and has not and will not partake in any actions in relation to the transactions contemplated herein in violation of such laws;
2. it and its Affiliates has not and will not offer, promise or make or agree to make payments or gifts (of money or anything of value) directly or indirectly to anyone for the purpose of influencing or inducing anyone to influence decisions in favor of Buyer;
3. unless expressly disclosed to Buyer in writing prior to the execution of this Agreement, it does not know nor has reason to believe that any of the owners, principals or senior management of Supplier, its Affiliates, or lower tier subcontractors (1) are or were persons acting in an official capacity for or on behalf of a government; or (2) have a familial relationship to persons acting in an official capacity for or on behalf of a government.

4.0 Termination

Either party may terminate this PA, without any cancellation charge, if any of the following events occurs in respect of the other party or the terminating party has reasonable grounds to believe that one is likely to occur, namely that the other party:



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(i) has a meeting convened for the passing of a resolution for its winding up (other than a voluntary liquidation for the purposes of reconstruction); (ii) enters into a scheme or voluntary arrangement with its creditors; (iii) is the subject of a petition presented for the appointment of an administrator; (iv) has a receiver appointed over any of its property or assets; or (v) is the subject of a petition presented for its bankruptcy. Such termination will be effective upon notice in writing to the other party, liquidator, administrator or receiver.

4.1 Termination of a SOW or WA

The following clause shall be added into the end of the subsection titled "**Termination of this Base Agreement**":
Notwithstanding the foregoing, Supplier recognizes and agrees that Buyer may immediately terminate this Agreement for Cause by written notice to Supplier in the case that (1) Supplier breaches the Ongoing Warranties pertaining to bribery listed above, or (2) when Buyer reasonably believes such a breach has occurred or is likely to occur. For purposes of the subsection titled "**Termination of a SOW or WA**" in the Base Agreement, the term Cause shall be deemed to include these events.

5.0 Survival

In the event the Base Agreement is terminated, the terms and conditions of the Base Agreement incorporated by reference herein shall survive such termination and remain in effect for purposes of this Participation Agreement only.

6.0 Scope of Work

The parties have separately executed a Scope of Work which describes the services subject of this PA.

**ACCEPTED AND AGREED TO:
IBM India Pvt Ltd**

By: _____

Buyer Signature _____ Date _____

Sangita Vinaik _____

Printed Name _____

Title & Organization
Procurement Leader - FMT _____

Buyer Address:
IBM India Pvt Ltd
Outer Ring road Embassy Manyata Tech Park
Block - D1, 4th Floor
Bangalore 560045

**ACCEPTED AND AGREED TO:
George P. Johnson Event Marketing Pvt. Ltd**

By: _____

Supplier Signature _____ Date _____

Rasheed Sait _____

Printed Name _____

Title & Organization
Managing Director _____

Supplier Address:
401, 3rd Floor, Prestige Tudor Court, 40, Lavelle
Road, Bangalore 560001

